

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Edward Tsigel	Team: Squad #16	CCRB Case #: 202200624	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Saturday, 01/22/2022 11:00 PM	Location of Incident: Remsen Avenue and Clarkson Avenue	18 Mo. SOL 7/22/2023	Precinct: 67		
Date/Time CV Reported Wed, 01/26/2022 11:44 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 02/01/2022 12:17 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DTS Julio Martinez	07078	958882	067 PCT
2. DTS Fabian Modesto	08846	950897	067 PCT
3. PO Nicholas Cardieri	11420	965968	067 PCT
4. SGT Robert Cox	03721	948821	067 PCT
5. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Haroonul Hassan	06703	964549	067 PCT
2. PO Larry Feng	29929	965087	067 PCT
3. LT Latavia Steele	00000	926168	067 PCT
4. PO Ihab Ginem	11307	962433	067 PCT
5. PO Jose Gomez	09675	964528	INT FIO PRG
6. PO Forhad Mahamud	08337	963625	067 PCT
7. PO Fei Lin	08330	963612	SRG 3
8. SGT Eudy Santos	02084	952214	067 PCT
9. PO Kevin Herrera	12928	964556	067 PCT
10. PO Vanessa Dambrosi	05057	961716	067 DET
11. PO Nicholas Toner	28652	968845	067 PCT
12. PO Hugo Gutierrez	10892	966092	067 PCT
13. PO Jonathan Sorocki	20764	963287	067 PCT
14. PO Macaulay Maldarelli	05974	961905	067 PCT
15. PO Michael Bravo	30647	964941	067 PCT
16. PO Jose Salazar	16890	966827	067 PCT
17. SGT Saidul Islam	01615	936798	067 PCT
18. PO Steven Tejeda	11253	966364	067 PCT
19. DI Gaby Celiba	00000	933681	067 PCT
20. PO Jessica Quiros	24054	951101	067 PCT
21. LT Alan Myrthil	00000	932190	067 PCT
22. PO Ronel Ruiz	19682	959170	067 PCT
23. PO Ihor Zaverukha	15866	961471	067 PCT
24. PO Jesse Hard	23523	967102	067 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
25. PO Nicholas Harripersad	21329	965172	067 PCT
26. PO Bryce Perdomo	14623	957021	067 PCT
27. SGT Mingwei Gao	02064	953891	067 PCT
28. PO Melvin Carpio	19803	958371	067 PCT
29. PO Delaney Warner	15972	967720	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DTS Fabian Modesto	Abuse: Detective Fabian Modesto threatened § 87(2)(b) with the use of force.	A . Substantiated
B . DTS Fabian Modesto	Discourtesy: Detective Fabian Modesto spoke discourteously to § 87(2)(b)	B . Within NYPD Guidelines
C . DTS Fabian Modesto	Force: Detective Fabian Modesto used physical force against § 87(2)(b)	C . Within NYPD Guidelines
D . DTS Fabian Modesto	Off. Language: Detective Fabian Modesto made remarks to § 87(2)(b) based upon race.	D . Substantiated
E . DTS Fabian Modesto	Discourtesy: Detective Fabian Modesto spoke discourteously to § 87(2)(b)	E . Substantiated
F . PO Nicholas Cardieri	Discourtesy: Police Officer Nicholas Cardieri spoke discourteously to § 87(2)(b)	F . Substantiated
G . DTS Julio Martinez	Force: Detective Julio Martinez pointed his gun at § 87(2)(b)	G . Unfounded
H . DTS Julio Martinez	Abuse: Detective Julio Martinez threatened § 87(2)(b) with the use of force.	H . Unable to Determine
I . DTS Julio Martinez	Abuse: Detective Julio Martinez threatened § 87(2)(b) with the use of force.	I . Substantiated
J . DTS Julio Martinez	Abuse: Detective Julio Martinez inappropriately touched § 87(2)(b)	J . Unable to Determine
K . SGT Robert Cox	Abuse: Sergeant Robert Cox arrested § 87(2)(b) unlawfully.	K . Substantiated
L . SGT Robert Cox	Abuse: Sergeant Robert Cox arrested § 87(2)(b) unlawfully.	L . Substantiated
M . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	M . Unfounded
N . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	N . Unfounded
O . DTS Julio Martinez	Abuse: Detective Julio Martinez searched the vehicle in which § 87(2)(b) § 87(2)(b) and § 87(2)(b) were occupants.	O . Substantiated

Case Summary

On January 26, 2022, § 87(2)(b) called the IAB command center and filed this complaint. On February 1, 2022, the CCRB received this complaint via IAB log # § 87(2)(b).

On January 22, 2022, at approximately 11:00 PM, § 87(2)(b) and § 87(2)(b) were inside § 87(2)(b) white BMW when § 87(2)(b) crashed his vehicle at Remsen Avenue and Clarkson Avenue in Brooklyn. Detective Fabian Modesto, Detective Julio Martinez, and Sergeant Robert Cox, all of the 67th Precinct, arrived at the scene and saw § 87(2)(b) and § 87(2)(b) running from the scene of the accident. § 87(2)(b) exited the vehicle and walked to the sidewalk.

Det. Modesto pursued and caught § 87(2)(b). Det. Modesto threatened to tase him (**Allegation A – Abuse of Authority - Substantiated**). Det. Modesto spoke discourteously to § 87(2)(b) (**Allegation B – Discourtesy – Within NYPD Guidelines**). Det. Modesto punched § 87(2)(b) in the back (**Allegation C – Force – Within NYPD Guidelines**). Det. Modesto used a racial slur towards § 87(2)(b) (**Allegation D – Offensive Language – Substantiated, and Allegation E – Discourtesy – Substantiated**). Approximately thirty additional officers from the 67th Precinct arrived at the scene, including Police Officer Nicholas Cardieri, and Police Officer Nicholas Toner. Additional officers assisted Det. Modesto with handcuffing § 87(2)(b) and PO Cardieri escorted § 87(2)(b) to a police vehicle. PO Cardieri spoke discourteously towards § 87(2)(b) (**Allegation F – Discourtesy – Substantiated**). Simultaneously upon arriving to the scene, Det. Martinez pursued § 87(2)(b). Det. Martinez allegedly pointed his gun at § 87(2)(b) (**Allegation G – Force - Unfounded**). Det. Martinez allegedly threatened to shoot § 87(2)(b) (**Allegation H – Abuse of Authority – Unable to Determine**). Det. Martinez threatened to tase § 87(2)(b) (**Allegation I – Abuse of Authority - Substantiated**). Det. Martinez caught, handcuffed, and escorted § 87(2)(b) to a police vehicle. Det. Martinez allegedly inappropriately touched § 87(2)(b) prior to placing him into the police vehicle (**Allegation J – Abuse of Authority – Unable to Determine**). Additionally, upon arriving to the scene, Sgt. Cox approached and handcuffed § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) were all arrested. Sgt. Cox supervised the unlawful arrest of § 87(2)(b) and § 87(2)(b) (**Allegations K and L – Abuse of Authority - Substantiated**). An unknown officer allegedly spoke discourteously towards § 87(2)(b) and § 87(2)(b) (**Allegations M and N – Discourtesy – Unfounded**). Det. Martinez then searched the white BMW (**Allegation O – Abuse of Authority - Substantiated**).

This case was originally assigned to Investigative Manager Rolando Vasquez and was reassigned to Investigator Edward Tsigel on May 23, 2022.

The CCRB received 36 Body Worn Camera (BWC) videos of this incident (BR 08).

§ 87(2)(b) was arrested for running a red light, having an obstructed license plate, reckless endangerment, obstruction of governmental administration, and resisting arrest (BR 09). § 87(2)(b) (BR 19) and § 87(2)(b) (BR 17) were also arrested.

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Fabian Modesto threatened § 87(2)(b) with the use of force.

Allegation (B) Discourtesy: Detective Fabian Modesto spoke discourteously to § 87(2)(b).

§ 87(2)(b)

Allegation (C) Force: Detective Fabian Modesto used physical force against § 87(2)(b).

§ 87(2)(b)

Allegation (D) Offensive Language: Detective Fabian Modesto made remarks to § 87(2)(b) based upon race.

Allegation (E) Discourtesy: Detective Fabian Modesto spoke discourteously to § 87(2)(b).

§ 87(2)(b)

The following allegations were pled solely based on BWC footage.

§ 87(2)(b) (BR 01) and § 87(2)(b) (BR 02) stated that on January 22, 2022, they were

inside § 87(2)(b) white BMW while he drove down Church Avenue. § 87(2)(b) was the front passenger and § 87(2)(b) was the back passenger. They observed a grey sedan driving in oncoming traffic and then making a U-turn and following them. They did not know if it was a police vehicle (the investigation determined it was an unmarked police vehicle). The sedan did not turn on lights or sirens or indicate to stop their vehicle at any point.

§ 87(2)(b) (BR 01) stated that after the sedan began to follow them, § 87(2)(b) began to drive 50 miles per hour (mph) because they did not know who was following them. The sedan followed them for approximately ten to twelve minutes through multiple streets without alerting them to stop. Eventually, § 87(2)(b) ran a red light and crashed into another moving vehicle. § 87(2)(b) exited his vehicle and saw an officer exiting from a sedan from behind (not the vehicle they had collided with).

§ 87(2)(b) (BR 02) stated that the sedan followed them for approximately three minutes through multiple streets, during which § 87(2)(b) was driving at 30 mph. The three of them did not know who was in the vehicle but believed that there may have been officers inside the sedan because it looked like a typical unmarked police vehicle. § 87(2)(b) began to drive 40 to 60 mph as the sedan continued to follow them. § 87(2)(b) ran a red light and the sedan followed them through the red light. § 87(2)(b) began to drive 80 to 91 mph and was able to lose the sedan. The sedan did not alert them to stop at any point. § 87(2)(b) then collided with another moving vehicle and § 87(2)(b) and § 87(2)(b) then ran while § 87(2)(b) remained at the location.

§ 87(2)(b) was not interviewed because he was unavailable (BR 03).

Det. Modesto (BR 04) stated that he was driving with Det. Martinez and Sgt. Cox in a convoy with another police vehicle on Church Avenue. The other police vehicle was in front, and he believed that Police Officer Haroonul Hassan and Police Officer Larry Feng, both of the 67th Precinct and Police Officer Jose Gomez of the Field Intelligence Unit were in it. An unknown officer from the other police vehicle radioed that they observed a white BMW in oncoming traffic commit a vehicle traffic law (VTL) violation and they were going to stop it. The other police vehicle made a U-turn behind the white BMW and then they radioed that it began to flee from them. Det. Modesto did not know if the other police vehicle turned on its lights and sirens. Det. Modesto drove in another direction to intercept the white BMW and was able to do so on another street. The white BMW was driving at an unknown high rate of speed above 25 mph. The officers momentarily lost sight of the vehicle. Det. Modesto canvassed the area and heard a loud crash at the intersection of Clarkson Avenue and Remsen Avenue. Upon arriving at Clarkson Avenue and Remsen Avenue, they saw the white BMW involved in a vehicle accident. Det. Modesto exited his vehicle, saw § 87(2)(b) exit the driver seat of the white BMW and run from the scene of the accident, and he began to pursue § 87(2)(b). The purpose of pursuing him was to place him under arrest for fleeing from a car stop, speeding, fleeing from an accident, and obstruction of governmental administration. While running after him, Det. Modesto radioed a description of § 87(2)(b) and accidentally dropped his radio. He lost § 87(2)(b) but canvassed the area and found § 87(2)(b) under a pickup truck.

From 0:00 to 1:00 of Det. Modesto's BWC video (BR 08), Det. Modesto is seen running down a street, looking for § 87(2)(b). At 0:55, Det. Modesto sees § 87(2)(b) hiding under a blue pickup truck and approaches him on the sidewalk. Det. Modesto draws his taser, points it at § 87(2)(b) under the pickup truck, and says "Let me see your arms bro, it's over, get out, ... I'm gonna fucking tase you, bro." At 1:17, § 87(2)(b) attempts to crawl out from underneath the pickup truck from the roadside. Det. Modesto runs to the roadside of the pickup truck and sees § 87(2)(b) attempting to stand up. Det. Modesto points his taser at § 87(2)(b) gets on top of him, and says, "Give me your hands, you're gonna get tased." At 1:28 and 1:30, Det. Modesto appears to strike § 87(2)(b) with his right hand. It is unclear where he strikes him. Between 1:28 and 2:03, Det. Modesto repeatedly says, "Get down bro," and "You're gonna get tased." It appears that § 87(2)(b) attempts to stand up and position his feet under him by lifting his torso

multiple times while Det. Modesto is on top of him. At 1:51, Det. Modesto says, "Get down nigga." At 1:52, Det. Modesto strikes § 87(2)(b) in his back with his right fist. At 1:59, Det. Modesto strikes § 87(2)(b) in the back with his right fist again. At 2:00, Det. Modesto says, "Get down nigga" again. At 2:03, additional officers arrive to the scene and run to Det. Modesto. They tell § 87(2)(b) to put his hands behind his back and then handcuff him. Det. Modesto stands up and walks away. Throughout the entire interaction, Det. Modesto is heard breathing heavily.

Det. Modesto (BR 04) stated that he pointed the taser at § 87(2)(b) and told him to get out and that he would tase him because he fled from Det. Modesto, to deescalate the situation, and to gain his voluntary compliance to arrest him. Det. Modesto stated that while § 87(2)(b) was under the pickup truck, he was not a danger to Det. Modesto and did not pose a safety threat to anyone. Det. Modesto believed that at the time § 87(2)(b) was under the pickup truck it would not have been justified to tase him. However, if Det. Modesto saw § 87(2)(b) exit from under the vehicle and flee then he would be justified in tasing him because he would be resisting arrest and fleeing from him. Additionally, he said "fucking" because that is the way he speaks and that it wasn't directed towards § 87(2)(b). There was no other reason for using the profanity. Once § 87(2)(b) attempted to get out from under the pickup truck, Det. Modesto jumped on top of him to hold him down and get him to comply. Det. Modesto gave § 87(2)(b) multiple commands to give his hands and comply, but he refused and resisted him by attempting to position his feet under him, standing up, and fleeing. Det. Modesto realized that he was by himself, no one knew where he was, he lost his radio and was unable to call for back up, and he was exhausted and weak from the pursuit. Additionally, he noticed that there was a male bystander who was watching what was happening, was standing on the road, and began walking behind Det. Modesto. Det. Modesto believed that the male bystander could have gotten involved and could have attacked him. Additionally, Det. Modesto believed that his taser would not have worked against § 87(2)(b) because § 87(2)(b) was wearing a puffy jacket and the prongs of the taser could not penetrate it. He also believed that using the taser in drive stun mode was not an option for him because it would have taken too much time to remove the cartridge. Det. Modesto feared for his life due to all of these circumstances. Det. Modesto began to punch § 87(2)(b) in the back and in the head with his fist. He felt his punches getting weaker because he was exhausted. He stated that he felt that his punches were like "baby punches." The purpose of the punches was to get § 87(2)(b) to comply and to overcome § 87(2)(b) resistance. Det. Modesto was attempting to hold § 87(2)(b) down and wait for back up because he did not believe he had enough energy to place him into handcuffs. Det. Modesto stated that he said "nigga" multiple times while involved in the physical altercation with § 87(2)(b). He stated that based on the circumstances he described, he lost his composure, and it came out in the heat of the moment. He stated that he said "nigga," as opposed to "nigger," and that it was not racially motivated, and he did not mean it in a demeaning manner towards § 87(2)(b). He stated that it was supposed to be a professional setting, however due to all of the factors he mentioned earlier, it did not feel like it anymore because he feared for his life.

§ 87(2)(b) arrest report (BR 09) states that § 87(2)(b) was driving with partially obstructed plates and was observed running a red light. Upon initiating a vehicle stop, § 87(2)(b) fled from officers in a reckless manner, while committing multiple violations, and with disregard for human life. § 87(2)(b) caused a vehicle accident and fled from the scene of the accident on foot. § 87(2)(b) was caught and resisted arrest by pulling his body away, stiffening his body, and attempting to run away again.

The Threat, Resistance, and Injury report (BR 10) states that officers used strikes, wrestling, and grappling, but does not specify which officers used the force or on which civilians.

Patrol Guide Procedure 221-08 (BR 11) states that tasers should only be used against persons who are actively resisting, exhibiting active aggression or to prevent individuals from physically injuring themselves or other persons. It states that a verbal and laser warning may be used in order to gain voluntary compliance and prevent the need to use force during instances in

which the use of the taser would be justified. Active resisting is defined as physically evasive movements to defeat a member of the service's attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody. Fleeing should not be the sole justification for using a CEW against a subject. Members should consider the severity of the offense, the subject's threat level to others, and the risk of serious injury to the subject before deciding to use a CEW on a fleeing subject.

§ 87(2)(g)

At the time that Det. Modesto pointed his taser at § 87(2)(b) and told him that he would tase him, § 87(2)(b) was not doing anything other than silently lying under the pickup truck. § 87(2)(b) was not a safety threat to himself or others and was not actively resisting or exhibiting active aggression towards anyone. § 87(2)(g)

It is therefore recommended that **Allegation A** be **Substantiated**.

Patrol Guide Procedure 200-02 (BR 12) states that officers are to maintain a higher standard of integrity than is generally expected of others and to treat every citizen with compassion, courtesy, professionalism, and respect.

According to DCT case No. 2018-18951 (BR 13), officers have a responsibility to act with decorum in their interactions with civilians, though certain situations where profane remarks are made during a stressful or chaotic situation do not constitute misconduct.

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **Within NYPD Guidelines**.

Patrol Guide Procedure 221-02 (BR 14) states that officers are to use no more than the reasonable force necessary to gain control of a subject who is uncooperative and resisting being placed in custody. Active resistance is defined as physically evasive movements to defeat an officer's attempt at gaining control including tensing and/or verbally signaling intention to avoid being taken into custody.

It is undisputed that § 87(2)(b) fled from officers in his vehicle, caused an accident, and then fled from officers on foot. Once Det. Modesto found him under the pickup truck, he refused to get out from under it after being given commands by Det. Modesto. He then attempted to flee from the other side of the pickup truck. Once Det. Modesto got on top of § 87(2)(b) attempted to plant his feet under him and flee again. § 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **Within NYPD Guidelines**.

Patrol Guide Procedure 200-02 (BR 12) states that officers are to maintain a higher standard of integrity than is generally expected of others and to treat every citizen with compassion, courtesy, professionalism, and respect.

Administrative Guide 304-06 (BR 15) states that officers are prohibited from making discourteous or disrespectful remarks regarding another person's race.

§ 87(2)(g)

It is therefore recommended that **Allegations D and E** be **Substantiated**.

Allegation (F) Discourtesy: Police Officer Nicholas Cardieri spoke discourteously to § 87(2)(b)

Although a discourtesy was not alleged, this allegation is being pled based on video footage of the incident.

At 1:00 of PO Cardieri's BWC (BR 08) video, PO Cardieri and additional officers arrive to where Det. Modesto is on top of § 87(2)(b). Other officers get on top of § 87(2)(b) and handcuff him. PO Cardieri does not assist in handcuffing him. At 1:50, PO Cardieri and other officers lift § 87(2)(b) off the ground and PO Cardieri frisks him. At 2:50, PO Cardieri escorts him to a police vehicle and frisks him again. At 3:35, he tells § 87(2)(b) to sit in the vehicle and he does. At 3:37, PO Cardieri says, "Put your legs in," twice, and § 87(2)(b) does not do so. PO Cardieri then lifts § 87(2)(b) legs and puts them into the vehicle while saying, "Put your fucking legs in." PO Cardieri then walks down the street to the scene of the accident.

PO Cardieri's (BR 05) statement was generally consistent with his BWC. PO Cardieri stated that after they handcuffed § 87(2)(b) they tried to stand him up, but he went limp and refused to be searched. While PO Cardieri was putting § 87(2)(b) into a police vehicle, § 87(2)(b) refused to put his feet into the vehicle. PO Cardieri asked § 87(2)(b) twice to put his feet in the vehicle and he refused each time. PO Cardieri picked up § 87(2)(b) feet, put them into the vehicle, and said, "Get your fucking feet in the car." He stated that he used the profanity because his adrenaline pumping, it was a tense incident, and because he believed that § 87(2)(b) could have fled from the officers at that point. He stated that § 87(2)(b) was a flight risk because he had previously fled from officers in a vehicle and on foot.

Patrol Guide Procedure 200-02 (BR 12) states that officers are to maintain a higher standard of integrity than is generally expected of others and to treat every citizen with compassion, courtesy, professionalism, and respect.

According to DCT case No. 2018-18951 (BR 13), officers have a responsibility to act with decorum in their interactions with civilians, though certain situations where profane remarks are made during a stressful or chaotic situation do not constitute misconduct.

§ 87(2)(g) § 87(2)(b) was handcuffed, sitting in the police vehicle, and was surrounded by multiple officers, § 87(2)(b) was no longer a threat. § 87(2)(g) PO Cardieri's first interaction with § 87(2)(b) was lifting him off the ground after he was handcuffed. § 87(2)(g)

It is therefore recommended that **Allegation F** be **Substantiated**.

Allegation (G) Force: Detective Julio Martinez pointed his gun at § 87(2)(b)

Allegation (H) Abuse of Authority: Detective Julio Martinez threatened § 87(2)(b) with the use of force.

Allegation (I) Abuse of Authority: Detective Julio Martinez threatened § 87(2)(b) with the use of force.

Allegation (J) Abuse of Authority: Detective Julio Martinez inappropriately touched § 87(2)(b)

§ 87(2)(b) (BR 01) stated that once he exited § 87(2)(b) vehicle, he saw Det. Martinez exit his police vehicle and draw his gun. § 87(2)(b) subsequently ran and saw Det. Martinez pointing his gun at him. Det. Martinez said, "I'm gonna shoot you." § 87(2)(b) was running with his hands up and not doing anything else. After approximately one to two minutes, § 87(2)(b) stopped running and Det. Martinez caught up to him and handcuffed him without any resistance. § 87(2)(b) was arrested and escorted to a police vehicle. He was not told what he was arrested for. § 87(2)(b) stated that Det. Martinez, "checked" him three times, each time for up to eleven seconds. § 87(2)(b) stated that the third time Det. Martinez "checked" him, it felt like he was "on some sexual harassment." Det. Martinez got "intense" in the way that he touched § 87(2)(b) inner thigh, private parts, and buttocks. Det. Martinez grabbed § 87(2)(b) private parts with his hand for four to five seconds, "on some gay shit." Det. Martinez's hand remained

moving between § 87(2)(b) inner thigh and groin area. He did not provide any more details about how Det. Martinez “checked” him or touched him. § 87(2)(b) was then transported to the 67th Precinct stationhouse.

Det. Martinez’s (BR 06) statement was generally consistent with Det. Modesto’s account (as discussed in **Allegations A-E**) of what occurred prior to § 87(2)(b) colliding with another moving vehicle. Upon arriving to the scene of the accident, Det. Martinez exited his vehicle and saw § 87(2)(b) exit the front passenger seat. § 87(2)(b) began to run from the scene of the accident, and Det. Martinez pursued him to place him under arrest for further investigation into why the driver of the vehicle had fled and into whether the vehicle was stolen. There was no other reason for arresting § 87(2)(b). Det. Martinez stated there was no particular reason why he believed § 87(2)(b) committed a crime or that the vehicle was stolen. While running after § 87(2)(b), Det. Martinez took out his taser, pointed it at § 87(2)(b) and told him that he would tase him if he did not stop. He denied taking out his gun or pointing his gun at § 87(2)(b). Det. Martinez denied that he said, “I’m gonna shoot you.” Det. Martinez stated that he threatened to tase § 87(2)(b) to get him to voluntarily stop running so that Det. Martinez could place him into handcuffs and arrest him. Det. Martinez believed that § 87(2)(b) was a threat to himself because he was running on the street, however, he did not believe that § 87(2)(b) was a threat to any officers or bystanders. § 87(2)(b) was not doing anything other than running. Det. Martinez stated that he frisked § 87(2)(b) on his whole body once he handcuffed him and denied that he inappropriately touched § 87(2)(b) in any way and denied that he touched § 87(2)(b) private parts.

At 0:00 of Det. Martinez’s BWC video 1/2 (BR 16), Det. Martinez exits his vehicle and approaches the white BMW. § 87(2)(b) exits the front passenger seat and begins running. Det. Martinez runs after § 87(2)(b). At 0:10, Det. Martinez has his taser in his left hand and his radio and flashlight in his right hand. He points his taser at § 87(2)(b) while running. At 0:30, § 87(2)(b) stops running and Det. Martinez approaches him, holsters his taser, and handcuffs him. At 1:30, Det. Martinez frisks § 87(2)(b) around the waistband area and the torso. It cannot be seen where exactly Det. Martinez’s hands are during the frisk. It is unclear if he enters any of § 87(2)(b) pockets. § 87(2)(b) says that he does not have a gun or anything else and did not do anything. § 87(2)(b) does not complain of being touched inappropriately. At 2:30, Det. Martinez appears to frisk the exterior of § 87(2)(b) jacket. At 2:40, Det. Martinez hands § 87(2)(b) off to PO Toner. There is no additional relevant footage. Det. Martinez is not seen drawing or pointing his firearm at any point throughout the footage. There is no audio in the first minute and it cannot be heard if Det. Martinez says, “I’m gonna shoot you.” It cannot be heard whether Det. Martinez says that he will tase § 87(2)(b).

At 2:25 of PO Toner’s BWC video (BR 08), PO Toner escorts § 87(2)(b) to a police vehicle. PO Toner frisks and searches § 87(2)(b) around his waist band area, pants, and jacket pockets. § 87(2)(b) complains that the officers are taking his money. PO Toner then says, “You’re gonna get checked,” and pats down § 87(2)(b) legs. § 87(2)(b) yells “Stop, stop playing. I’ll get a lawyer, y’all thing this shit is a game? I don’t got nothing.” PO Toner responds, “We have to check, It’s our job.” § 87(2)(b) responds, “You already checked me three times. You already looked in here, I don’t have no weapon.” § 87(2)(b) continues to complain about PO Toner searching him. The video captures the entire search and shows PO Toner’s hands every time they touch § 87(2)(b) pant area. PO Toner does not make any prolonged physical contact with any part of § 87(2)(b) body. PO Toner does not inappropriately touch § 87(2)(b) at any point. § 87(2)(b) does not complain about being inappropriately touched and only complains about being searched. At 3:45, § 87(2)(b) is placed into the vehicle. There is no additional relevant footage in PO Toner’s or in any other officer’s BWC videos (BR 08).

§ 87(2)(g)

It is therefore recommended that **Allegation G** be **Unfounded**.

Patrol Guide Procedure 221-08 (BR 11) states that tasers should only be used against persons who are actively resisting, exhibiting active aggression or to prevent individuals from physically injuring themselves or other persons. It states that a verbal and laser warning may be used in order to gain voluntary compliance and prevent the need to use force during instances in which the use of the taser would be justified. Active resisting is defined as physically evasive movements to defeat a member of the service's attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody. Active aggression is defined as a threat or overt act of an assault (through physical or verbal means), coupled with the present ability to carry out the threat or assault, which reasonably indicates that an assault or injury to any person is imminent. Fleeing should not be the sole justification for using a CEW against a subject. Members should consider the severity of the offense, the subject's threat level to others, and the risk of serious injury to the subject before deciding to use a CEW on a fleeing subject.

§ 87(2)(g)

It is therefore recommended that **Allegation H** be closed as **Unable to Determine**.

Det. Martinez admitted to verbally and physically threatening to tase § 87(2)(b) § 87(2)(b)

It is therefore recommended that **Allegation I** be **Substantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegation J** be closed as **Unable to Determine**.

Allegation (K) Abuse of Authority: Sergeant Robert Cox arrested § 87(2)(b) unlawfully.

Allegation (L) Abuse of Authority: Sergeant Robert Cox arrested § 87(2)(b) unlawfully.

§ 87(2)(b) (BR 02) stated that after § 87(2)(b) and § 87(2)(b) fled from the scene, she exited the vehicle and walked to the nearest sidewalk. Sgt. Cox approached her, handcuffed her and told her that she was being detained. She saw that other officers caught § 87(2)(b) and § 87(2)(b) and arrested them. She was then frisked, searched, placed into a police vehicle, and transported to the 67th Precinct stationhouse. She was processed at the front desk and placed in a cell. At approximately 4:00 AM, the following day, she was released without any charges or summonses, and left the stationhouse.

As noted above, § 87(2)(b) (BR 01) stated that he was also arrested and brought to the stationhouse. § 87(2)(b) said that his charges were dropped and he was released the following day.

As noted above, Sgt. Cox, Det. Modesto, and Det. Martinez received information from other officers that they observed § 87(2)(b) commit a VTL violation and they all pursued the vehicle. Sgt. Cox did not observe the violation and did not know what the violation was. § 87(2)(b) began to drive erratically by driving at a high rate of speed above 25 mph, and disobeying pavement markings. The officers followed the vehicle from a distance but did not pursue it, so that they did not create dangerous conditions for pedestrians in the area. After a few minutes, while approximately three to four blocks behind the vehicle, Sgt. Cox observed the vehicle run a red light at Clarkson Avenue and Remsen Avenue and crash into another moving vehicle,

causing a vehicle accident. Det. Modesto stopped the police vehicle at the intersection and Sgt. Cox saw § 87(2)(b) and § 87(2)(b) exit their vehicle and run away. Det. Modesto and Det. Martinez engaged in a foot pursuit of § 87(2)(b) and § 87(2)(b) respectively. § 87(2)(b) exited the back seat of the vehicle and walked to the sidewalk.

From 0:00 to 1:15 of Sgt. Cox's BWC video (BR 08), Sgt. Cox exits his vehicle, approaches § 87(2)(b) on the sidewalk, and handcuffs her. At 2:15, Sgt. Cox hands § 87(2)(b) off to another officer and briefly walks away from the scene of the accident. He does not tell § 87(2)(b) why he handcuffed her. There is no other relevant footage in his BWC.

Sgt. Cox stated that he handcuffed § 87(2)(b) for the purpose conducting an investigation to determine if their vehicle was stolen. Sgt. Cox stated that the vehicle could have been stolen; however, there was nothing indicative of that. He did not remember if the VTL violation was indicative of the vehicle being stolen. Sgt. Cox stated that § 87(2)(b) did not commit any crimes and he only handcuffed her regarding the investigation. He stated that generally during vehicle stops, passengers are allowed to leave. He did not specify whether they are allowed to leave during vehicle accidents. § 87(2)(b) and § 87(2)(b) were eventually arrested and brought back to the stationhouse. He stated that the reason for arresting § 87(2)(b) and § 87(2)(b) was because the officers had not yet determined whether another crime had been committed regarding the vehicle. He knew that later § 87(2)(b) arrest was voided at the stationhouse and she was released. He did not know what she was charged with, why she was released, or who approved her release. He did not know what happened with § 87(2)(b) arrest or what he was charged with.

§ 87(2)(b) arrest (BR 17) is sealed and it is unknown what she was arrested for. The CCRB was unable to obtain an unsealing order from § 87(2)(b) [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

The CCRB was able to confirm that the Brooklyn District Attorney's Office declined to prosecute § 87(2)(b) and § 87(2)(b) (BR 21, 22). However, the CCRB was unable to obtain the decline to prosecute form or learn the reason because § 87(2)(b) and § 87(2)(b) arrests are sealed (BR 23, 24).

Patrol Guide Procedure 208-01 (BR 25) states that officers are allowed to make arrests when they have reasonable cause to believe that an individual committed a crime, offense, or petty offense, regardless of if it was in their presence.

Allegations J and K are being pled against Sgt. Cox because he was the supervisor present during this incident, and he supervised the arrest of § 87(2)(b) and § 87(2)(b) § 87(2)(g)

it is undisputed that the District Attorney's Office declined to prosecute § 87(2)(b) and § 87(2)(b) and their arrests have been sealed and voided. It is therefore recommended that **Allegations K and L be Substantiated.**

Allegation (M) Discourtesy: An officer spoke discourteously to § 87(2)(b)

Allegation (N) Discourtesy: An officer spoke discourteously to § 87(2)(b)

§ 87(2)(b) (BR 02) stated that after § 87(2)(b) and § 87(2)(b) were both caught and handcuffed, they were escorted back to the scene of the accident. At some point she heard a uniformed Black male officer say, "Look at these assholes." She could not describe the officer

further and did not know who the statement was directed towards.

§ 87(2)(b) (BR 01) did not allege that officers said, “Look at these assholes.”

As mentioned above, Det. Modesto’s BWC video (BR 08), and PO Cardieri’s BWC video (BR 08) capture the entire interaction between officers and § 87(2)(b) at the scene. Det. Martinez’s BWC video (BR 16) and PO Toner’s BWC video (BR 08) capture the entire interaction between officers and § 87(2)(b). No officers are heard saying, “Look at these assholes.” No other available BWC (BR 08) footage captures any officers saying, “Look at these assholes.” The footage shows that there were at least 31 officers present at the scene and at least 18 of them were Black or Hispanic.

Det. Modesto (BR 04) denied using any profanities during the incident (other than the ones mentioned **Allegations A – E**). Det. Martinez (BR 06) denied that he used any profanities during the incident or that he heard any other officers do so.

Based on video evidence and officer testimony, the investigation determined that no officer said, “Look at these assholes.” It is therefore recommended that **Allegations M and N be Unfounded**.

Allegation (O) Abuse of Authority: Detective Julio Martinez searched the vehicle in which

§ 87(2)(b) and § 87(2)(b) were occupants.

Although a vehicle search was not alleged, this is being pled based on BWC footage.

At 2:40 of Det. Martinez’ BWC video 1/2 (BR 16), Det. Martinez approaches the white BMW. At 2:48, Det. Martinez opens the front passenger door of the BMW. At 3:30, he reaches into the BMW, lifts up an airbag, and searches under it for two seconds. He continues to flash his flashlight into the vehicle.

Det. Martinez (BR 06) stated that after he arrested § 87(2)(b) he returned to the crash location and searched the white BMW. He flashed his flashlight inside the entire vehicle. At one point he stuck his hand inside the vehicle and moved something but did not remember where exactly he stuck his hand into or what he moved. He stated that he searched the vehicle because of the circumstances of the entire incident (discussed above), and because he had suspicion that either the vehicle was stolen or there was a weapon inside of it. He stated that “something criminal” was happening because § 87(2)(b) and § 87(2)(b) fled from the accident scene. There was no other reason why he believed there was a weapon inside the vehicle or the vehicle was stolen. There was no indication that there were any weapons or contraband inside of the vehicle or that the vehicle was stolen. He did not find any weapons or contraband as a result of the search.

The vehicle accident report (BR 26) is generally consistent with the civilian and officer testimony, and documents mentioned above. They stated that § 87(2)(b) was involved in a head on collision with another moving vehicle, causing vehicle damage and injury, after driving recklessly and disobeying traffic signals, and then § 87(2)(b) and § 87(2)(b) fled from the scene of the accident.

People v. Blasich, 73 N.Y.2d 673 (BR 27) established the search-incident-to-arrest exception to protect against the danger that an arrestee may gain access to a weapon or may be able to destroy or conceal critical evidence. Thus, the scope of a vehicle search must be limited to the arrestee’s person and the area from within which he might gain possession of a weapon or destructible evidence.

People v. Quackenbush, 636 N.Y.S.2d 572 (BR 28) states that officers have the right to impound and search a vehicle which was involved in a vehicle accident that caused severe injury or a fatality for the purpose of determining mechanical failures leading to the accident. The scope of the search is limited to specific mechanical areas of an automobile, including the brakes, wipers, windshield, and headlights. Thus, the police cannot search any other areas of the vehicle where evidence or contraband might be hidden.

It is undisputed that Det. Martinez searched the front passenger seat of the vehicle. Although the search was brief in duration, it was done at a time when § 87(2)(b) § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) were handcuffed and not in the vicinity of the vehicle. § 87(2)(g)

It is therefore recommended that **Allegation O** be **Substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) (BR 29), § 87(2)(b) (BR 30), and § 87(2)(b) (BR 31) have been a party.
- Detective Fabian Modesto has been a member of service for eleven years and has been a subject in nine CCRB complaints and twenty-nine allegations, of which one was substantiated:
 - 201904830 involved a substantiated allegation of a discourtesy against Det. Modesto. The Board recommended command discipline A and the NYPD imposed command discipline A. § 87(2)(g)
- Police Officer Nicholas Cardieri has been a member of service for four years and has been a subject in three CCRB complaints and six allegations, of which one was substantiated:
 - 202001855 involved a substantiated allegation of a threat of arrest against PO Cardieri. The Board recommended command discipline B and the NYPD imposed formalized training. § 87(2)(g)
- Detective Julio Martinez has been a member of service for seven years and has been a subject in five CCRB complaints and fifteen allegations, none of which were substantiated. § 87(2)(g)
- Sergeant Robert Cox has been a member of service for twelve years and has been a subject in five CCRB complaints and eleven allegations, of which three were substantiated:
 - 201505431 involved substantiated allegations of a stop, frisk, and search of person against Sgt. Cox. The Board recommended command discipline B and the NYPD imposed formalized training. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of July 8, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (BR 32).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 16

Investigator:	<u>Inv. Tsigel</u>	<u>Investigator Edward Tsigel</u>	<u>04/04/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Patrick Yu</u>	<u>IM Patrick Yu</u>	<u>04/04/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date